

Branch Manager, Punjab National Bank, Badhola, Kasganj v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 30 May 2022 · WRIT - C No. 7385 of 2022 · **Writ disposed with liberty to file a Para 6.8 objection; recovery stayed.**

HEADNOTE

A writ against a demand and recovery notice of Rs.4,49,468 was disposed without any opinion on merits, with liberty to the petitioner to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, to be decided by the distribution licensee after hearing within four weeks thereafter, and with coercive action stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

The Branch Manager of Punjab National Bank, Badhola, Kasganj, approached the High Court against a demand and recovery notice dated 15 February 2021 for Rs.4,49,468 issued by the power distribution corporation, described as respondent no. 2, and also sought a stay on realization of the stated penalty. Counsel for the corporation stated, on instructions, that the bank could file an objection to the demand and that the objection would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to a demand under Para 6.8

HOLDING

Without expressing any opinion on the merits, the writ is disposed with liberty to the petitioner to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks, together with a certified copy of the order. If the objection is filed in time, the licensee shall decide it in accordance with law within the next four weeks after affording a reasonable opportunity of hearing. No coercive action shall be taken on the impugned demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy The challenge to the demand notice was not decided on merits. The petitioner was left to an objection under Para 6.8, to be decided by the licensee after hearing within a fixed time, with coercive recovery stayed in the interim. ¶ 1

fresh-objection-under-clause-6.8 Liberty was given to submit a fresh objection under Para 6.8 within four weeks of the order, along with a certified copy of the order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND AND RECOVERY NOTICE OF RS.4,49,468 DATED 15.02.2021 WAS LAWFUL

The Court expressed no opinion on the merits and left the demand to be decided on the Para 6.8 objection. ¶ 1

